

Fax:

Fax:

E-mail:

E-mail:

hr.cbe@sierradigitalinc.com

Either Party may change its point of contact designation by written notice to the other.

6. That such Proprietary Information delivered by the disclosing Party to the receiving Party shall be for the purpose of discussions regarding upcoming business opportunities. Parties agree to not assert any claim of title or ownership to the Proprietary Information or any portion thereof. If Proprietary Information consists of computer software disclosed in object code form, receiving Party shall not, and shall not permit any other party, to reverse engineer, reverse compile, or disassemble such object code, or take any other steps to derive a source code equivalent thereof.
7. That for a period of Two (2) years from the date of the last disclosure of the Proprietary Information hereunder, the receiving Party shall safeguard and hold in strict confidence such Proprietary Information and prevent disclosure thereof to third parties, without the written consent of the disclosing Party. The receiving Party shall further restrict disclosure of such Proprietary Information to only those employees who have a need to know and who have executed a nondisclosure agreement with terms substantially similar to this Agreement. During the abovementioned five-year period, no other use of the Proprietary Information is granted without the written consent of the disclosing Party. In the event the disclosing Party gives its approval for the receiving Party to disclose Proprietary information to the U.S. Government, the receiving Party shall ensure that, to the extent specifically requested by the disclosing Party, all such disclosures are marked with appropriate legends, as required or permitted under Government regulations, in order to preserve the proprietary nature of the information and the disclosing Party's rights therein.
8. That the obligations with respect to disclosing and using Proprietary Information, as set forth in Paragraph 6 of this Agreement, are not applicable if the same is:
 - (a) shown by the receiving Party to be in the public domain at the time of receipt or that it came into the public domain thereafter through no act of the receiving Party in breach of this Agreement or of any other party in breach of any other obligation of confidentiality owing to the disclosing Party, or
 - (b) contained in written record in the receiving Party's files prior to the date of its receipt from the disclosing Party, or
 - (c) disclosed or used with the prior written approval of the disclosing Party, or
 - (d) demonstrated in written record by the receiving Party to have been developed independently of disclosures made hereunder, or
 - (e) lawfully disclosed on an unrestricted basis to the receiving Party by a third party under conditions permitting such disclosure, or
 - (f) disclosed by the receiving Party in response to a legal mandate by order of a court or administrative body, after the receiving Party promptly notifies the disclosing Party and provides a reasonable opportunity to oppose such order.
9. This Agreement is made effective as of the date set forth above and may thereafter be terminated by either Party upon the giving of thirty (30) days written notice to the other Party of its intention to terminate. Upon termination of this Agreement and the written request of the Disclosing Party, the Receiving Party shall promptly return to the Disclosing Party all materials and copies containing the Proprietary Information.
10. That the Parties acknowledge that unauthorized disclosure, use or sale of the Proprietary Information, in whole or in part, or the disclosure, use or sale of any information or material created from, based upon or arising out of the Proprietary Information will give rise to irreparable injury to the disclosing Party inadequately compensable in damages. Accordingly,